ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	124th Commission Meeting
DATE:	19 & 21 April, 2023
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1	Regular HR update – HRS *The decision of 95th HRC meeting held on 18 April 2023 was apprised.* - *Selection update for the position of RDs in P1 category;* - *Three applications for resignations with directive to HRS and PPD to explore career progression opportunities for officials completing Bachelor's degree while in service;* - *Department/Divisions to review candidatures for meritorious promotion for July 2023.*	**The Commission directed to expedite the next phase of recruitment to fill the vacant positions at various levels including the Director's position in the Department of Prevention & Education.** **While discussing on the meritorious promotions, the Commission directed the HRC to review and initiate discussion with the RCSC on Director Gyeltshen's promotion which has been due for some time.**
2	Apprise on enrichment in the conduct of thematic session – ED, DoPE *The ED apprised on proposal to enrich the upcoming Thematic Session for Finance and Procurement officials with engagement of officials from the DoI and Legal Division.*	**The Commission endorsed the participation of a representative each from DoI and LD with directive to enhance the presentation contents for greater impact of the sessions. It was also decided that Dasho Jamtsho, Commissioner in-charge to lead the team for the two rounds of sessions.** **Adopting such strategy of engaging representatives from different Department/Divisions for the thematic sessions, the ED was directed to identify, capture, organize and utilize diverse inhouse experiences/lessons learnt and expertise for knowledge management. Such knowledge sharing and collaboration among departments/division was directed to be initiated for the content development for FITI**

		courses, if required facilitated by the PPD with coordination techniques.
3	Discuss way forward on CPIB delegation – DoI & PPD *The Commission reviewed the annotated program of the visit by two CPIB delegates from 30 April – 10th May 2023, in detail.* *The final annotated program is attached.*	**Some specific directives were as follows:** • **DoI to prepare detailed interaction plan to engage the two delegates in reviewing the investigative operation and management procedures/ processes in a period of two and half days.** • **Visa fees of Nu. 2500/- each for the two delegates to be met from the JSP budget.** • **PPD to prepare a customized plaque with appreciation message as gift/souvenir.**
4	Follow-up of the 10th QSM on feedback/suggestion/ concerns-PPD *Appreciating various suggestion/feedbacks received during the staff meeting, the Commission highlighted the need to review and take immediate actions.* *The following plan of actions against respective suggestions/feedbacks received during the staff meeting were presented to the Commission:* *i) Renovate and improve the washrooms: SS proposed it to be undertaken in the next FY given the budget constraints.* *ii) Volunteer to clean, beautify and paint the office: SS proposed to present a way forward in next Commission meeting having noted the majority's agreement to volunteer.* *iii) Improve the conduct of QSM including the regularity to be reduced.* *iv) Revisit and reduce TAT for the minutes of meetings such as the Commission, HRC, Finance Committee, Judgement Appraisal, IRC and*	**The specific Commission's directive on each of the category of feedbacks/suggestions were as follows:** **i) SS to assess the exact needs of the staff on proposed renovation of the laboratories. Further, SS to improve water supply and cleanliness including the need to reduce safety concerns with wet floors; explore if RITH offers short courses on housekeeping for ESP staff; and encourage all the staff to equally take responsibility to maintain clean washrooms.** **ii) SS to take note of suitability of spring season for initiating such volunteerism. The Commission appreciated the staff coming forward to take social responsibility and ownership to clean and make work environment pleasant for ourselves, especially when there are budget constraints at the national as well as agency level.** **iii) Staff meetings being an important platform to communicate, collaborate and foster team culture, the Commission decided to retain the frequency (of four) and the current practice of rotational hosting for it not only ensure inclusivity and active contribution of Regional Offices' (RO) to organizational collaborative environment but also foster a supportive relation between the management and RO teams.** **However, to make the staff meetings impactful and relevant as proposed by the staff, the Commission directed PPD to improve content and format of the meetings,**

	Investigation Committee meetings. v) *Revisit committees and its member composition, in particular HRC, CEC, and IRC.* vi) *Revisit frequency of regular meetings.* vii) *Revisit AWe policy.* viii) *Reduce TAT for approving TADA by the respective Heads to three or less working days.* ix) *Revisit decision of 6th Finance Committee on TADA payment.* x) *Improve efficiency, accessibility and user-friendly services of SS including improvement of basic amenities in the office.* xi) *Enhance presence in mass and social media including Commission's engagement in media and increase accessibility to the complainants visiting in person.* xii) *Improve HRM practices to enhance staff motivation with flexibility on EOL/study leave, regularization of contract employees, job rotation, and equal professional allowances. The Commission discussed that there is no general restriction on study leave & EoL as it is to be considered on case-by-case basis, and the requirement for the staff who joined ACC on lateral transfer to serve for minimum of three years are all based on the past experiences adopted to maintain 90% active workforce. With regards to*	**making it creative and encouraging wider participation/engagement and knowledge/ information sharing. In this regard, all Department/Divisions were encouraged to hereafter propose creative agenda items for such meetings.** **iv) Directed to reduce TAT to share minutes of all the general meeting in four working days while investigation related minutes to be finalized within five working days; wherein the official concerned to prepare the draft in two and three working days respectively, followed by a day each for reviewing by the responsible committee/management team and getting it signed and uploaded in the final day.** **On similar note, the Commission directed DoPS and LD to review and propose TAT for implementing the Commission's decisions related to judgement appraisals and follow-ups.** **v) Decided to retain the IRC and ICM given its separate roles of advisory and decision making respectively. However, taking note of the challenges of the investigators, the Commission firstly directed DoI to revise IRC's member composition focused with DoI representatives, and secondly to explore reduction of administrative burden to the Teams by making the respective Chiefs present during the Commission meeting.** **Decided to decentralize the roles of CEC to the departmental level and accordingly directed DoPS to reconstitute its member composition.** **Further, decided to decentralize the HRC to be Chaired by one of the Directors, on rotational basis, with additional representative from the regional Heads, with effect from May 2023. The delegation was expected to establish a vibrant committee to lead strategic interventions on HR issues and also effectively address the needs of the staff. Further, separating the Commission from HR decision making body will provide effective platform for grievance redressal. On this note, the Commission directed the HRC to continue informing its decisions to the Commission given that the ACC is currently facing**

	45% allowance, it is not within the ACC's control, however, noted that the drivers who are engaged in investigation related function for more than a month is given 45% allowances. Further, noted that job rotation in ACC has always been encouraged, except for some specialized positions. *xiii) Proposal to revisit Commission's portfolio in the mid-term of the Commission's tenure.* *xiv) Improve communication within and among ROs. The Commission noted that a representative from the Regional Heads attending the HRC weekly, on rotational basis, will foster regular communication among three offices.* *xv) Revive innovation dumra initiative with greater awareness.* *xvi) Strengthen confidentiality related to investigative functions.*	**greatest challenge of employee retention. However, such information to the Commission should not be misconstrued for Commission interfering in the HRC's decisions. Instead, it is expected to foster good practices of Commission's advices for timely interventions on HR matters and also, on very rare circumstances, to revisit any HRC's decisions affecting policy level interventions.** **vi) With regards to regularity of meetings, the Commission decided to maintain the frequency of the HRC and Commission meetings as status quo. The Weekly Workplan and Management meeting (in person) reduced to be convened once in a month but the work plan and review to be prepared and shared weekly, with effect from May 2023.** **vii) The recommendation to revisit the active work force policy was not approved given that the circumstances of HR retention challenges under which the policy was developed has not improved.** **viii) Reduce TAT for TADA review & approval to three or less working days upon receipt by the approving authority. However, the Commission directed that the technical issues related to eDATS should be informed to MoF to receive timely notification**. **ix) Directed to be discussed in the next Finance Committee meeting.** **x) With regards to enhancing services of SS, the Commission directed the following:** - **to expedite adoption of its initiative of making services electronic such as dispatch, biometric, vehicle management, stationary requisition, among others.** - **share staff welfare scheme document with all the staff for information.** - **review the removal of air conditioner, in consultation with the staff in the third floor, and install in Phuntsholing.** - **to write and inform the MoF immediately on poor quality of centrally procured cartridge.** - **improve basic amenities in the office including uninterrupted water and**

		internet services. - **to undertake survey regularly hereafter to understand the issues faced by the staff in assessing services from SS.** - **inform and clarify all the staff on Phuentsholing guesthouse booking system. Instead, directed to collect all the dues from those who have not yet settled.** **xi) While the suggestions for the Commission to engage in mainstream media was appreciated, the Commission highlighted the limitations in view of the revised Media Policy whereas the media agencies appear only to be primarily interested in 'breaking' stories related to investigations. Nonetheless, noting the suggestion and given the need for public awareness on the public service model code of conduct and integrity vetting, the Commission decided to make conscious efforts to engage media, particularly on prevention and education programs.** **On the proposal to meet/entertain the complainants, when approached, the Commission decided the following based on the two classifications of complainants:** - **The institutional complainant to meet at three levels, firstly the complaint management officer concerned, Director of DoPS and lastly the Commissioner in-charge or the Chairperson, if so advised by the Commissioner;** - **The individual complainant to approach complaint management officer concerned, Director of DoPS and lastly the Commissioner in-charge, if so advised by the Director.** **This is in the interest of time as well as ensuring consistency and integrity of the complaint management system.** **The Commission directed DoPS to step up on sharing updates on complaints with the complainants having received recommendations from various studies/research. To this, directed DoPS to adopt TAT to share updates with the known complainants and also explore adoption of alternate platform, with similar functions, if**

		the *myACC* App does not seem feasible due to external stakeholders' conditions. **xii) Directed HRS to share related policy and practices on HR to communicate clearly on the relevant information.** **xiii) Decided to revisit the portfolio of the Commission members to be effected from 1st July 2023, as follows:** - **Commissioner A Karma Rinzin as in-charge for DoPS; DoPE, and Bumthang & Trashigang ROs.** - **Commissioner Jamtsho as in-charge for DoI and Phuntsholing ROs.** **xiv) Directed the three Regional Directors to enhance communication among themselves and also ensure greater prominence in the respective regions delivering their mandates effectively. To this, directed the Regional Offices to develop strategic plans (roadmap) to contribute to the vision and the organizational mission of *114*.** **xv) Directed PPD to revive the innovation dumra initiative including creating awareness to provide space and drive innovation in every little way.** **xvi) The Commission highlighted that the concerns related to confidentiality need to be reminded and maintained by all, not only the DoI. As also revealed by various national research/studies, the ACC need to enhance its confidentiality and witness protection by strategizing its effective management. To this, the Commission directed to remind and discuss this among departments. To minimize risk of information disclosure, all were directed to shred all the papers/documents wastes, including non-investigative related.** **Further, directed PPD and ICT to immediately review the user accessibility on *Eversign* and enhance confidentiality.**
9	Any others: - Speaker for the session: 'Protecting the Independence of Key Authorities in the Integrity	**Noted that Director of DoPS, as the participant for 11th Regional Conference, has been asked to be the speaker for the session.**

	Framework' for the 11th Regional Conference of the ACI of ADB/OECD	
	- MoFAET's advise to decline ICAC, Hong Kong's (Secretariat of IAACA) proposal to host conference in June 2023	**Directed PPD to appropriately communicate the same to the ICAC.**

Commissioner **Commissioner** **Chairperson**

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